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File No.: EXP202406389

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by

COMMUNITY OF PROPERTY OWNERS A.A.A. (hereinafter, the appellant), against the resolution issued by the Presidency of the Spanish Agency for Data Protection, dated March 19, 2025, and based on the following:

FACTS

FIRST: On March 19, 2025, a resolution was issued by the Presidency of the Spanish Agency for Data Protection in file EXP202406389. The resolution was notified to the appellant on March 19, 2025, as evidenced in the file.

SECOND: On April 23, 2025, the appellant submitted a recourse for reconsideration to the AEPD against the resolution indicated in the previous point, expressing their disagreement with it.

The following legal grounds apply to the aforementioned facts:

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve the present recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds for inadmissibility

Article 116 of the LPACAP establishes in its letter d) as a ground for inadmissibility of administrative recourses "Having elapsed the period for filing the recourse."

III

Calculation of the filing period

According to the provisions of Article 124 of the LPACAP: "The period for filing the recourse for reconsideration shall be one month, if the act is express."

Article 119 of this law adds that: "The resolution of the recourse will either uphold in whole or in part or dismiss the claims made in it or declare its inadmissibility."

Regarding the calculation of the indicated period, it must be attended to what is established in paragraph 4 of Article 30 of the LPACAP which states: "If the period is set in months or years, these will be computed from the day following that on which the notification or publication of the act in question takes place, or from the day following that on which the estimation or dismissal by administrative silence occurs.

The period will conclude on the same day on which the notification, publication, or administrative silence occurred in the month or year of expiration. If in the month of expiration there is no equivalent day to that on which the computation begins, it will be understood that the period expires on the last day of the month."

In this case, the resolution of the Presidency of the Spanish Agency for Data Protection, dated March 19, 2025, was notified to the appellant on March 19, 2025, and the recourse for reconsideration was filed on April 23, 2025.

Therefore, it can be concluded that the filing of the recourse for reconsideration on the indicated date exceeds the legally established filing period, and thus the recourse should be declared inadmissible for being out of time.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE INADMISSIBLE the recourse for reconsideration filed by COMMUNITY OF PROPERTY OWNERS A.A.A. against the resolution of this Agency, issued on March 19, 2025, in file EXP202406389.

SECOND: TO NOTIFY this resolution to COMMUNITY OF PROPERTY OWNERS A.A.A.

Against this resolution, which concludes the administrative process, a contentious-administrative recourse may be filed within two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned Law.

1025-020125

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President of the Spanish Agency for Data Protection

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